ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	104th Commission Meeting
DATE:	17 November 2022
TIME:	09:30 AM
VENUE:	Third Floor Meeting Room

#	AGENDA & DISCUSSIONS	DECISIONS
1.	**Regular update on IVS – DoPS** *In its effort to fine-tune the Integrity Vetting Report with the requirement of Election Commission of Bhutan (ECB), which is either Yes or No, the Director, DoPS presented the elements that should be construed either 'Yes' or 'No' based on the discussion held at the working level of the two institutions after the meeting with Commissions held on 9 November 2022. (Presentation slides attached as Annex I)*	**While the Commission is doubtful that clemency in the categorization of elements will complement the ECB's initiative in setting the higher standard, the Commission based on the recommendation of LD directed the following for the purpose of elections:** • **The pending major administrative action as a result of investigation to be categorized under 'Yes' and those pending administrative action which resulted from the complaint stage to be considered as 'No'.** • **Those complaints and cases which qualified for investigation and are currently under investigation to be considered as 'No'.** • **Those cases which are under trial for offenses of misdemeanor and below to be categorized as 'No'.** • **As for the order for the compensatory damages, confiscation, or recovery in absence of imprisonment, LD to look into whether we can *in toto* consider such cases under 'No' or decide case by case basis wherein the judgment implemented can be considered under 'No' and pending recoveries may be computed based on value involved in the case. However, protection must be accorded to a third party for instance an innocent buyer.** **Besides, other important directions of the commission are to:** • **Further tease out nuances under the four categories of Integrity Vetting**

Deki

		Reports as well. ● **Develop a comprehensive template for the Integrity Assessment Certificate.** ● **Work on signing Memorandum of Understanding between ACC & ECB towards formalizing IAC.**
2.	**Present update on Mobile app – CMD** *The Complaint Management Division presented the draft prototype of the Mobile App for complaint reporting and tracking status of the complaints along with the features. While the main objective of the App is mainly to track the status of complaints, it was apprised that the consultant will keep the provision for reporting in the foreseeable future.* *Besides, the proposal for the name of the App and the descriptions on the decisions of complaints both in Dzongkha & English which will be featured in the Mobile App were presented for the endorsement. (Presentation slides attached as Annex II)*	**While noting the earlier decision of the Commission to keep the focus of the App on just tracking the status, looking at the prototype submitted by the Consultant, the Commission directed to keep the complaint reporting provision too. Regarding the prototype, following were directed:** ● **To include double layer of authentication to track the status of complaints to avoid phishing;** ● **Take out the dashboard for ACC User from the landing page of the App and keep it in the back end.** **Regarding the name of the Mobile App, the Commission directed to keep it as 'myACC'. To this, directed to play with the font to make it more appealing.** **As for the description of decisions on complaints, the Commission reviewed and suggested changes** *(recorded in slides).*
3.	**Regular update on HR – HRS** *The HRO presented the update on the decisions of the 77th HRC as follows:* ● *RCSC approved the change of course (Masters in Criminology) of Ms. Kinley Choki, Legal Officer.* ● *RCSC approved the adjustment of Chief Admin. Officer and Chief Legal Officer (P1) to P2 and lower.* ● *Redeliberated on the proposal for establishment of Phuentsholing Regional Office and the post adjustment and number of staff from the Departments/Divisions to be deployed thereof.* ● *Budget request for Financial Investigation Specialist Training which will be conducted in ICAC, Hongkong sent to RCSC.* ● *As for the second round of recruitment, against the 45 candidates shortlisted for written exam, 11 withdrew without informing the HRS.*	**Noted the updates.** **The Commission decided to keep record of those individuals who have withdrawn without informing HRS in the IVS for blacklisting in future recruitment.**

Deki

		Further, given the pool of applicants, directed to give an opportunity to the standby applicants to sit for a written exam in place of the 11 applicants who have withdrawn. **Directed HRO to attend the meeting with the Chief of Police regarding the proposal to tie up mandatory training with the Police training.** **Directed HRO to prompt and encourage the Heads of Departments/Divisions to approach their staff before their promotion is due as a means to motivate rather than being mechanical. Besides promotion, directed HRO to look at other softer aspects of motivating staff.** **Regarding Commission's decision to propose Kelden Jamtsho, Sr. Legal Officer for meritorious promotion despite the HRC deciding not to, the Commission while respecting the decision of the HRC, noted that the interpretation of the BCSR "*need to have outstanding for the last 3 years*" is a subjective interpretation and more so, the performance of the individual in question for the last five years is rated Outstanding. Thus, the Commission decided to recommend him for meritorious promotion along with other eligible candidates. Moreover, directed that the Heads of Departments/Divisions should bring exceptional performance of staff for discussion in the HRC so as to maintain record even if the individual doesn't qualify for meritorious promotion as per the criteria.**
4.	**Update on UNCAC – LD** *The Commission during the 102nd Commission Meeting directed LD to write to MoFA seeking clarity on denunciation. However, given that the country visits by the reviewing state for second-cycle review is pending and considering the impending risk that Bhutan may have to start from scratch, the Commission later on directed LD to first seek information from the UNCAC Secretariat on the impact of denunciation.* *Towards this, LD apprised that for now,*	**Directed to wait for the response.**

Deki

	no response has been received from the Secretariat and for the withdrawal the MoFA has deposited the instrument.	
5.	**Present proposal on ground floor restructuring – SS** *With the joining of new staff, the office space for DoPS and SS at the ground floor cannot accommodate all the staff. Hence, they proposed to restructure the ground floor, which may cost approximately Nu. 0.130mn*	**Approved as proposed since the budget required is minimal and also it will ensure optimal utilization of the space.**
6.	**Present proposal on the names for meeting rooms –SS** *Given the numbers of meeting rooms in the ACC and to ensure systematic allocation and maintenance of the rooms/halls, the SS presented its proposal (presentation attached as Annex III).*	**While noting the proposals and three options presented, the Commission, based on the sacredness, decided not to use His Majesty's name. As for the two options, the Commission decided to write a brief on the proposed names and share to all for their feedback or any other name suggestion before deciding.**
7.	**Apprise on follow up on ATR as part of OIP – PD & CFD, DoPS**	***Deferred***
8.	**Present implementation status of 102nd and 103rd Commission Meeting- PPD**	***Deferred***
9.	Others: **1. Visit to CPIB** *PPD apprised Commission that the focal from CPIB suggested to postpone the visit to CPIB in January 2023 given their engagement.*	**Decided as proposed**

Commissioner **Commissioner** **Chairperson**

eversign

Audit Trail

Document Details

Title	104th Com. Mtg_Minutes.pdf
File Name	104th Com. Mtg_Minutes.pdf
Document ID	b349212d3bf04ce9a8e1a15cbd4e250b
Fingerprint	43b4efc4077408c933b0194e9b8920ec
Status	Completed

Document History

Document Created	Document Created by Tashi Yangzom (tyangzom@acc.org.bt) Fingerprint: 134bf755e5f2074833533bbd68491ca2	Nov 24 2022 09:27AM UTC
Document Sent	Document Sent to A Karma Rinzin (akrinzin@acc.org.bt)	Nov 24 2022 09:27AM UTC
Document Viewed	Document Viewed by A Karma Rinzin (akrinzin@acc.org.bt) IP: 202.144.157.154	Nov 24 2022 09:56AM UTC
Document Signed	Document Signed by A Karma Rinzin (akrinzin@acc.org.bt) IP: 202.144.157.154	Nov 24 2022 09:57AM UTC
Document Sent	Document Sent to Jamtsho (jamtsho@acc.org.bt)	Nov 24 2022 09:57AM UTC
Document Viewed	Document Viewed by Jamtsho (jamtsho@acc.org.bt) IP: 202.144.157.154	Nov 24 2022 10:38AM UTC
Document Signed	Document Signed by Jamtsho (jamtsho@acc.org.bt) IP: 202.144.157.154	Nov 24 2022 10:40AM UTC
Document Sent	Document Sent to Deki Pema (dpema@acc.org.bt)	Nov 24 2022 10:40AM UTC
Document Viewed	Document Viewed by Deki Pema (dpema@acc.org.bt) IP: 119.2.118.16	Nov 24 2022 10:50AM UTC
Document Signed	Document Signed by Deki Pema (dpema@acc.org.bt) IP: 119.2.118.16	Nov 24 2022 10:52AM UTC
Document Completed	This document has been completed. Fingerprint: 43b4efc4077408c933b0194e9b8920ec	Nov 24 2022 10:52AM UTC

Processed by eversign



དོན་ལྷད་བཀག་སྡོམ་ལྷན་ཚོགས།

ACC

ANTI-CORRUPTION COMMISSION

Integrity Vetting System (IVS)

Department of Professional Support

TYPE OF INTEGRITY VETTING REPORT(IVR)

Four(4)Types of record :

- No Adverse Record;
- Provisional Record;
- Record , and
- Adverse Record.

1. No Adverse Record

"when there is no record against the person "

2. Provisional Record

"When there is a complaint against a person and the case is either under/ongoing:"

- Investigation
- Administrative Action
- Trial

3. Record

" When an complaint has been registered against an individual and accordingly the following legal action has been imposed:"

- Criminal conviction for the offences of petty misdemeanor and below
- Alternative sentences in lieu of imprisonment such as civil commitment and/or commutation of sentences Civil sanctions in the forms of fine or penalty
- Order for the compensatory damages, confiscation, or recovery in absence imprisonment
- Non-compliance record on Asset Declaration Rules including the verified disproportionate assets
- Unsuccessful Impeachment of Holders of Constitutional Offices, and
- Disciplinary sanctions imposed by relevant tribunal or agency.

4. Adverse Record

" When there is criminal conviction for the offences of misdemeanor and above or when a person who is Holder of the Constitutional Office is impeached"

The IVR will be read as ...

1. No Adverse Record

"This Report is **informational** in nature. There are no advisory or binding conditions on the requesting agency with regard to a person with *No Adverse Record* as per ACC's Integrity Vetting Report."

2. Provisional Record

"This Report is **advisory** in nature. The requesting agency is advised to either refrain from employing, promoting, nominating and/or entering into contractual relations with a person with a *Provisional Record* as per ACC's Integrity Vetting Report OR postpone the decision until such time that the case against the person has been formally and legally conclude"

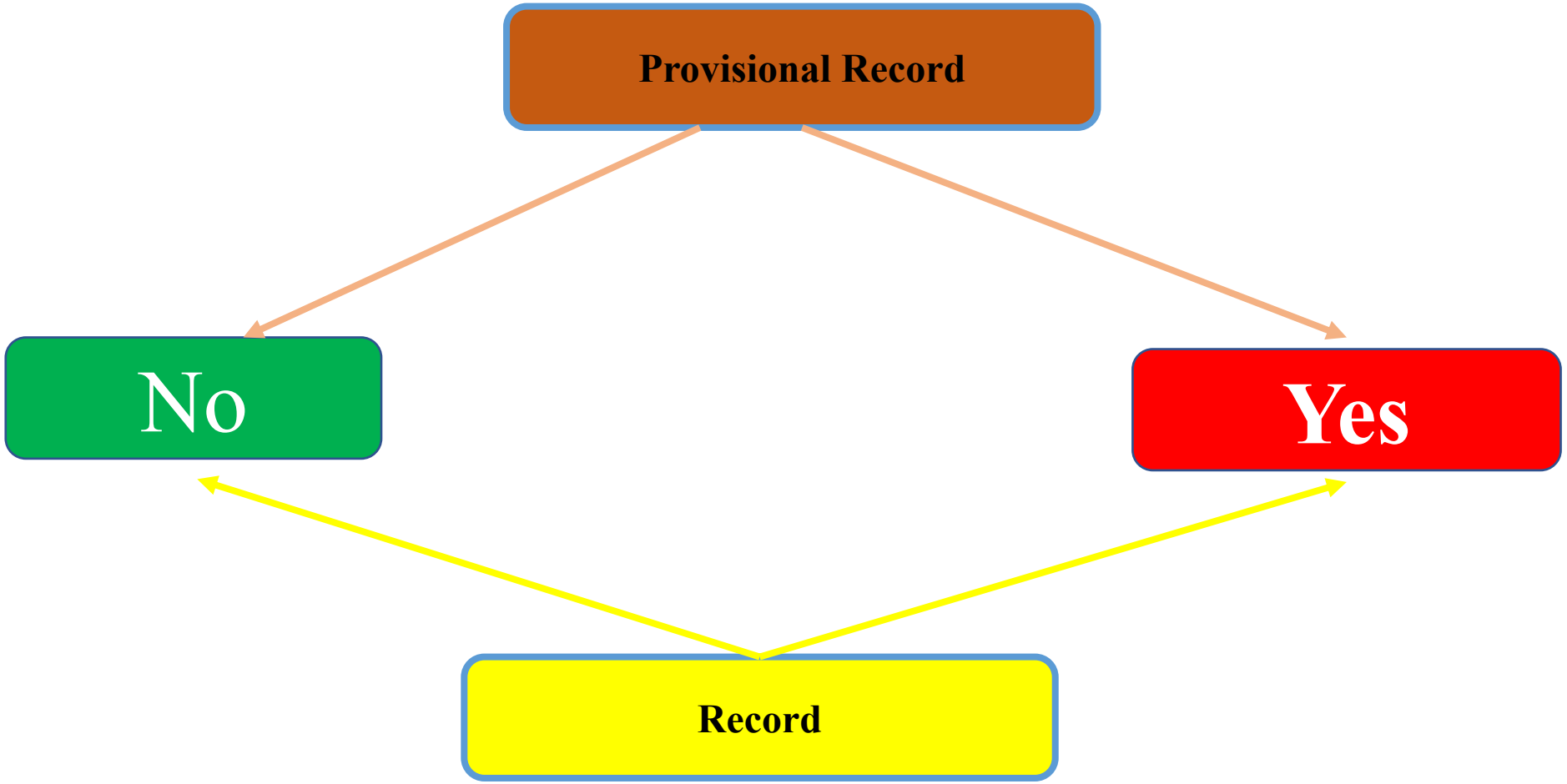
3. Record

"This Report is **directorial** in nature. The requesting agency is required to exclude or prohibit a person from employment, promotion, nomination and/or entry into contractual relations in the specific area or position in which the person is *With Record* as per ACC's Integrity Vetting Report."

4. Adverse Record

"This Report is **obligatory** in nature. The requesting agency shall not employ, promote, nominate and/or enter into contractual relations with a person who has been criminally convicted for a misdemeanor or above or been impeached"

For election purpose, Election Commission of Bhutan wanted the Integrity Accessessment Cetificate as “ **No**” or “ **Yes**”



NO

- Qualified for investigation / under investigation
- Pending Administration Action
- Trail (misdemeanor and below)
- Alternative sentences in lieu of imprisonment such as civil commitment and/or commutation of sentences Civil sanctions in the forms of fine or penalty
- Order for the compensatory damages, confiscation, or recovery in absence imprisonment
- Non-compliance record on Asset Declaration Rules including the verified disproportionate assets
- Unsuccessful Impeachment of Holders of Constitutional Offices, and
- Disciplinary sanctions imposed by relevant tribunal or agency
  - Minor and Compulsory retirement

YES

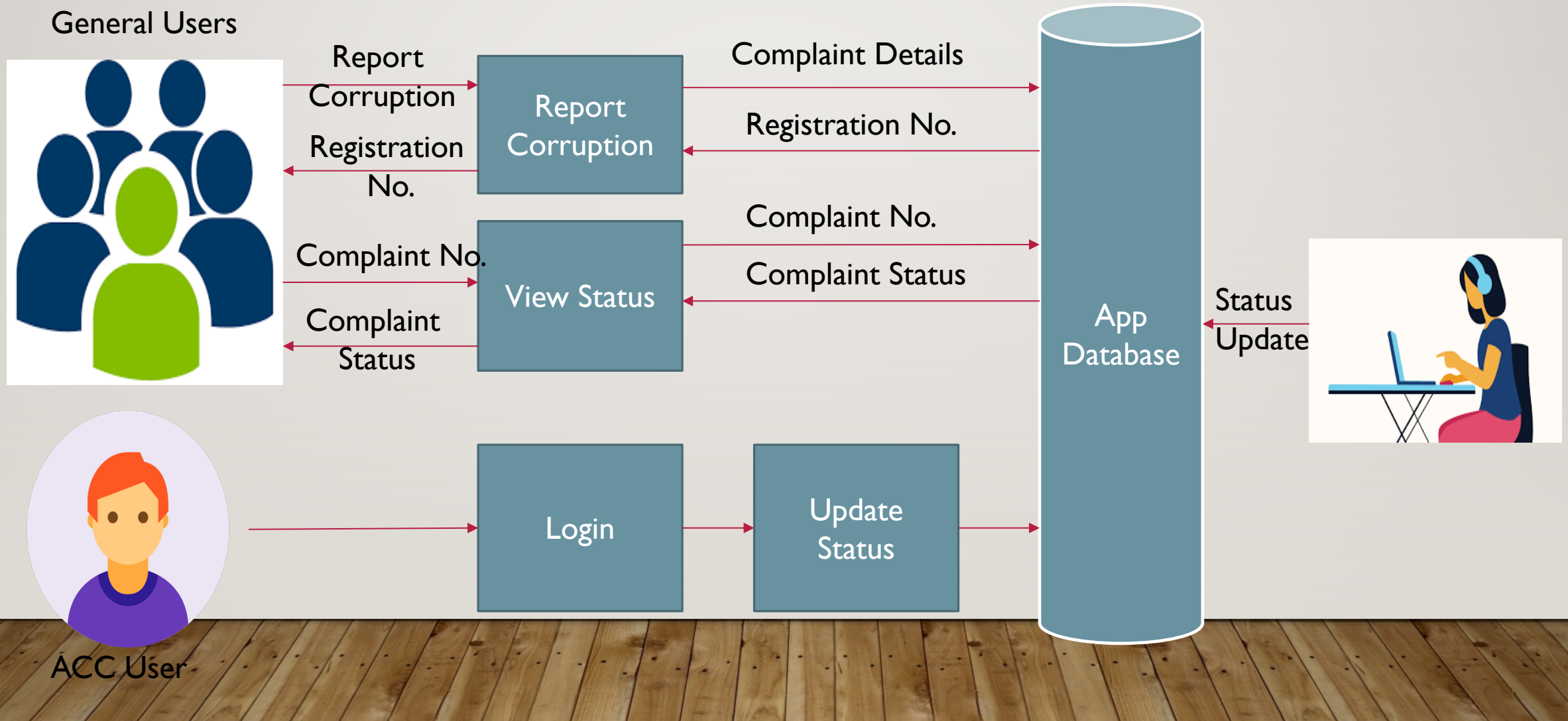
- Trail (Felony and above)
- Criminal conviction for the offences of petty misdemeanor and below
- Major Administrative Action
  - terminated or discharged from the duty


བཀའ་དྲིན་ཆེ།
Kadrinchey

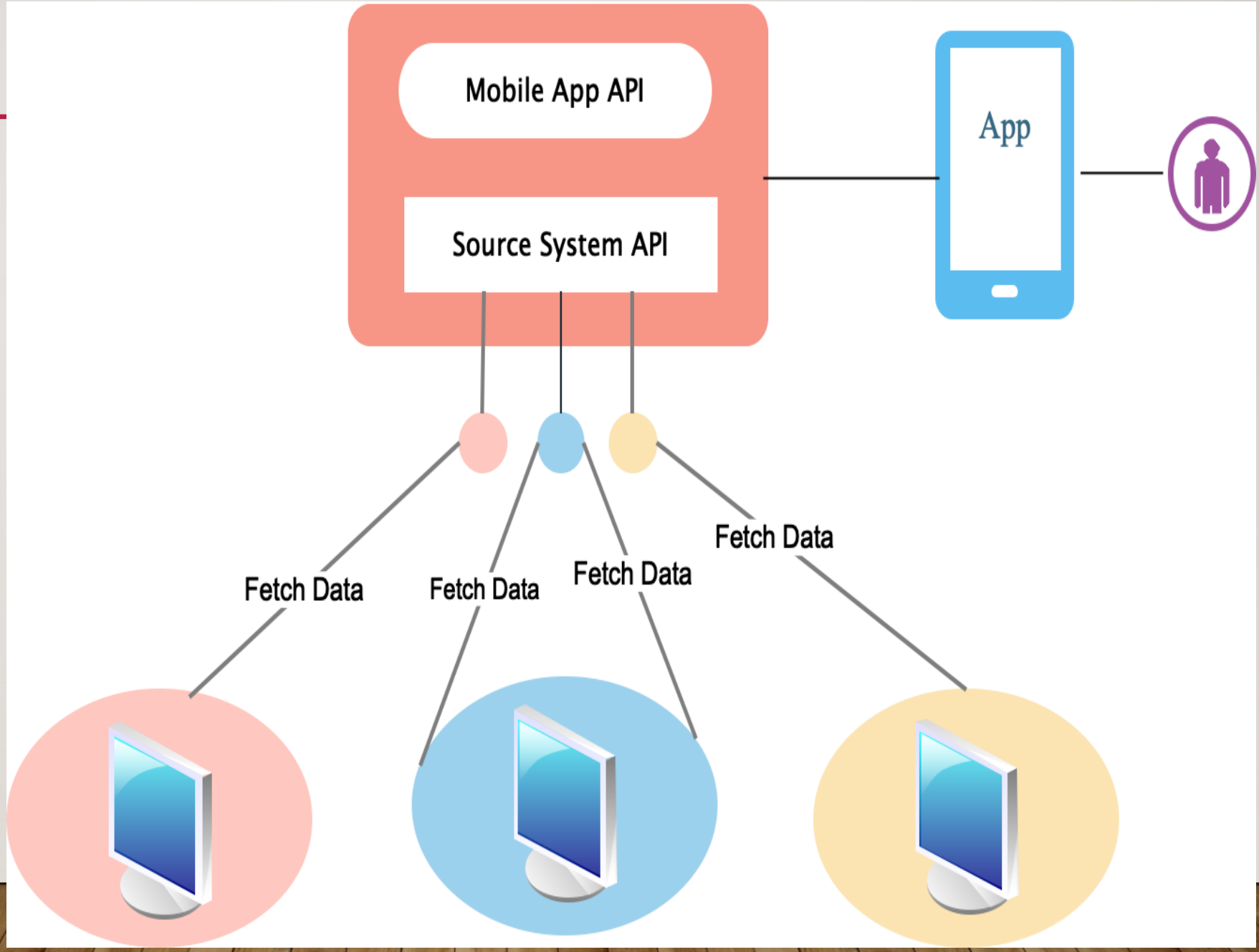
COMPLAINT REPORTING AND STATUS CHECK APP

ACC

REQUIREMENTS



SOLUTION


Mobile App API
Source System API
App
Fetch Data
Fetch Data
Fetch Data
Fetch Data

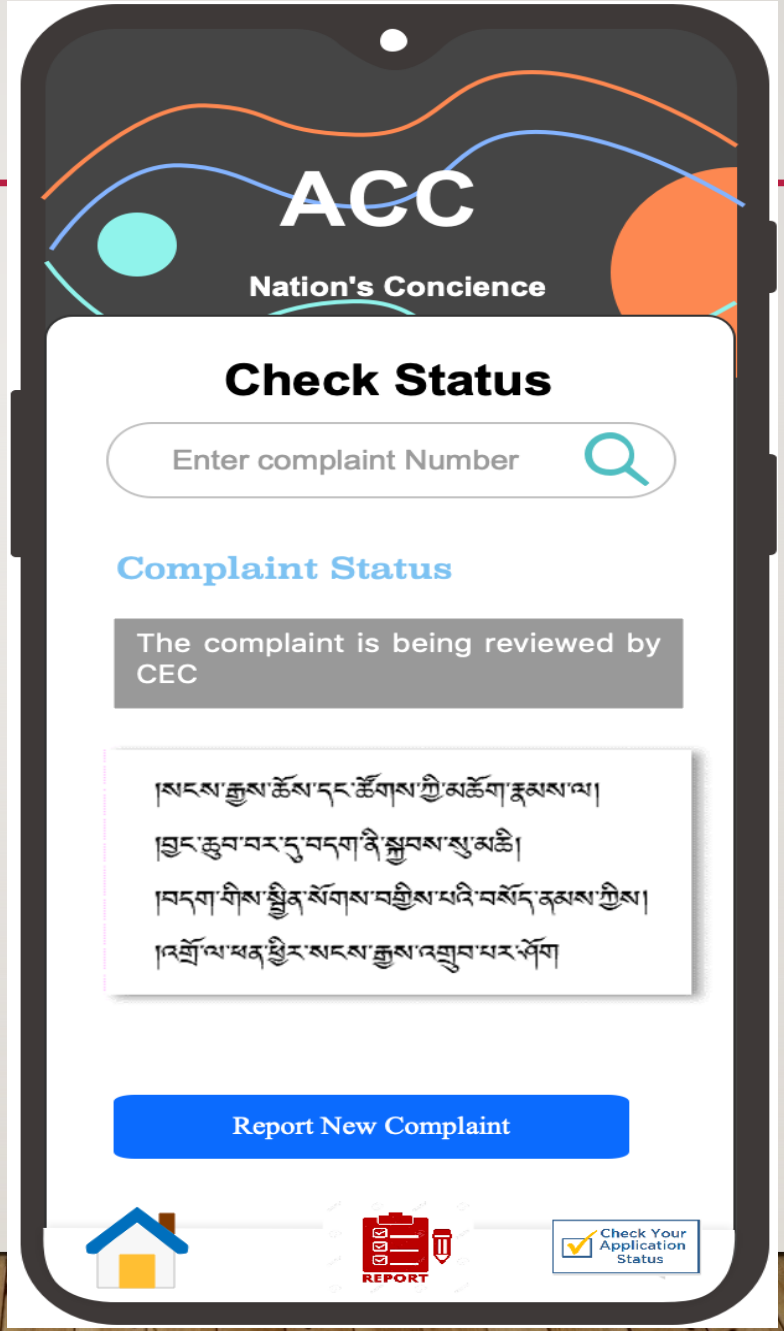
EXAMPLE PAGES – OPENING PAGE & REPORT COMPLAINT PAGE



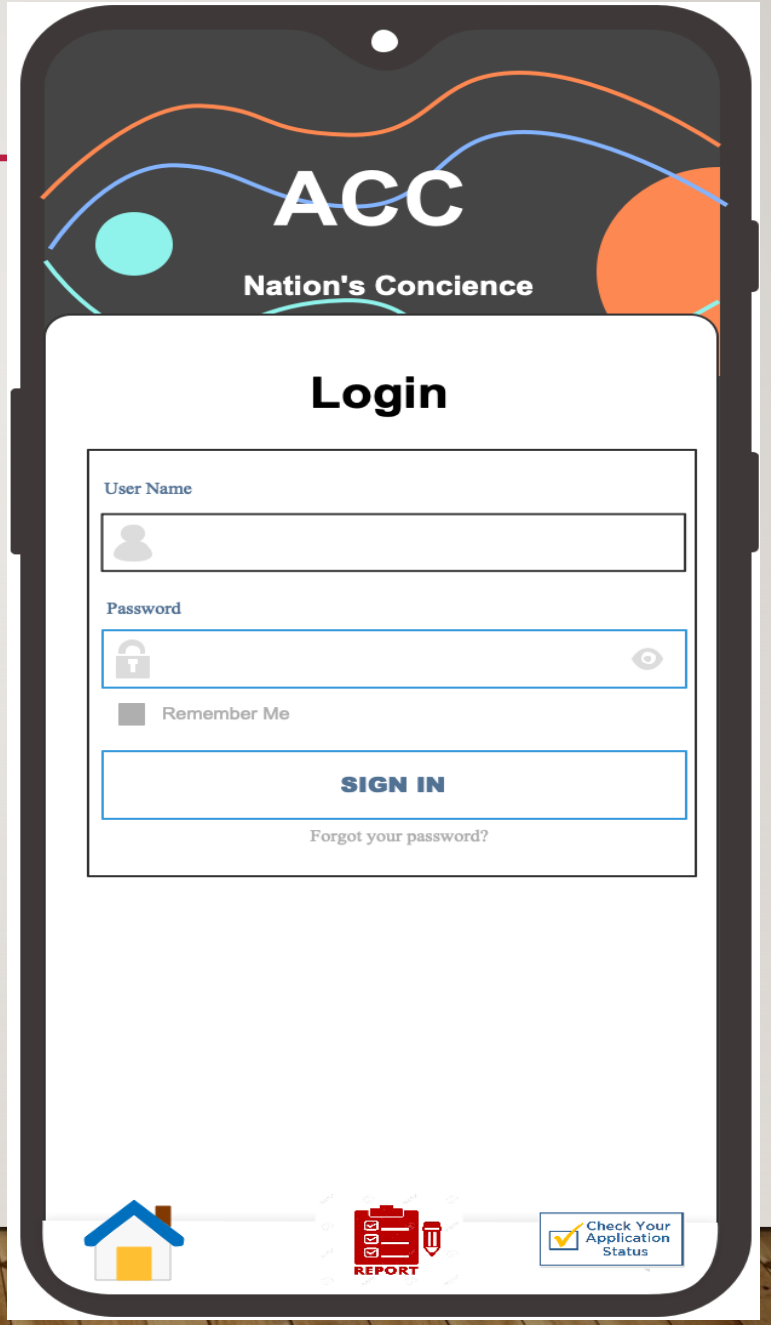
EXAMPLE PAGES – COMPLAINT SUBMISSION



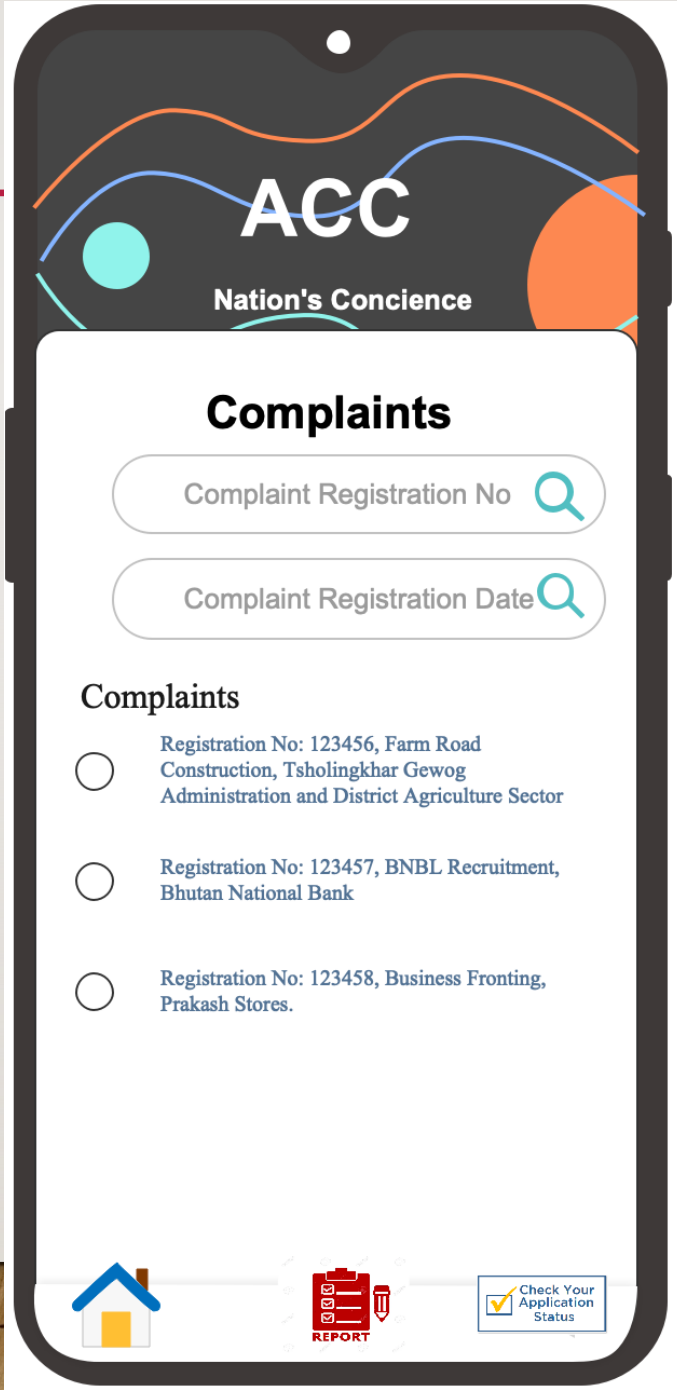
EXAMPLE PAGES – STATUS CHECK

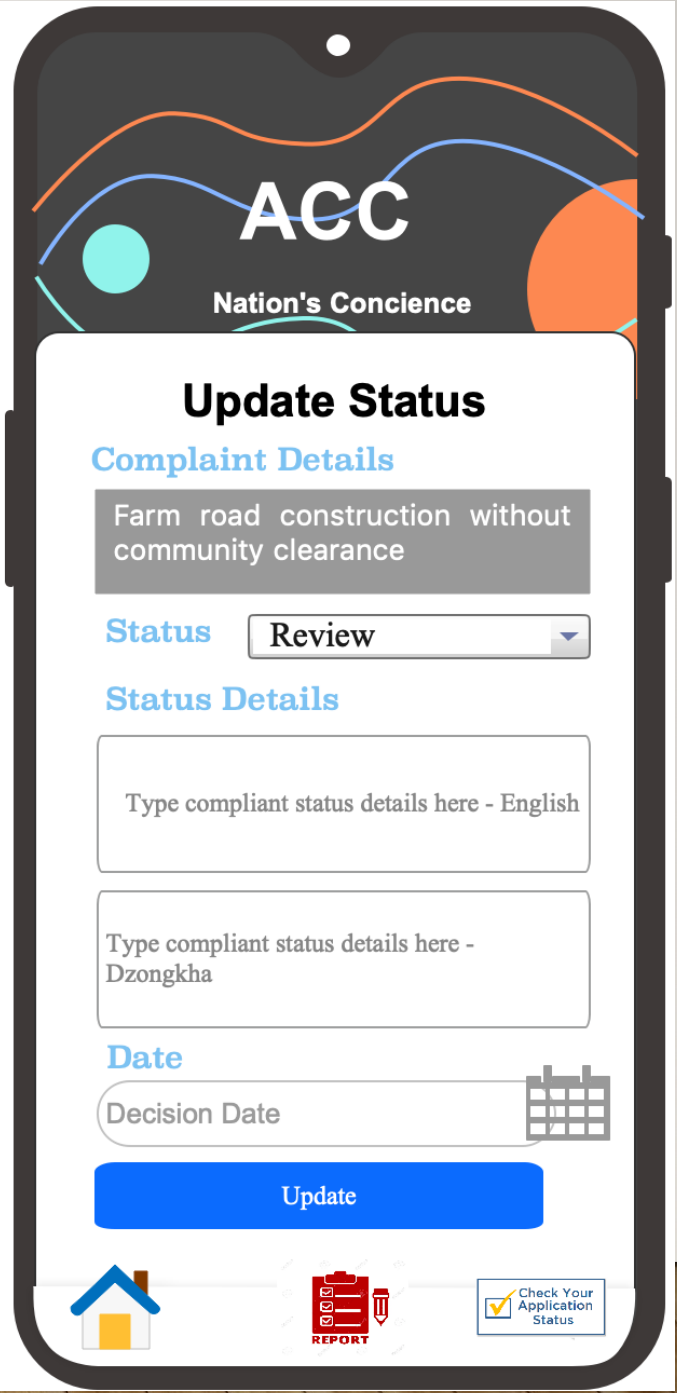


EXAMPLE PAGES – ACC LOGIN



EXAMPLE PAGES – STATUS UPDATE





STATUS UPDATE - WEB INTERFACE

ANTI-CORRUPTION COMMISSION

Complaint Status Update

Complaint Registration No. [ ]

OR

Registration Date [ ] Search

Sl. No.	Compliant Registration No.	Registration Date	Details of Complaint	Action
1	2022/2395	12/10/2022	This is for testing	Update
2				

ANTI-CORRUPTION COMMISSION

Complaint Status Update

Complaint Registration No.: 2022/2395

Complaint Registration Date: 12/10/2022

Status: Dropped

Status Details:

Enter status details in English

Enter status details in Dzongkha

Update Cancel

STATUS CHECK - WEB INTERFACE



Complaint Status Update

Complaint Registration No. [ ] Search

Complaint Registration No.: 2022/2395

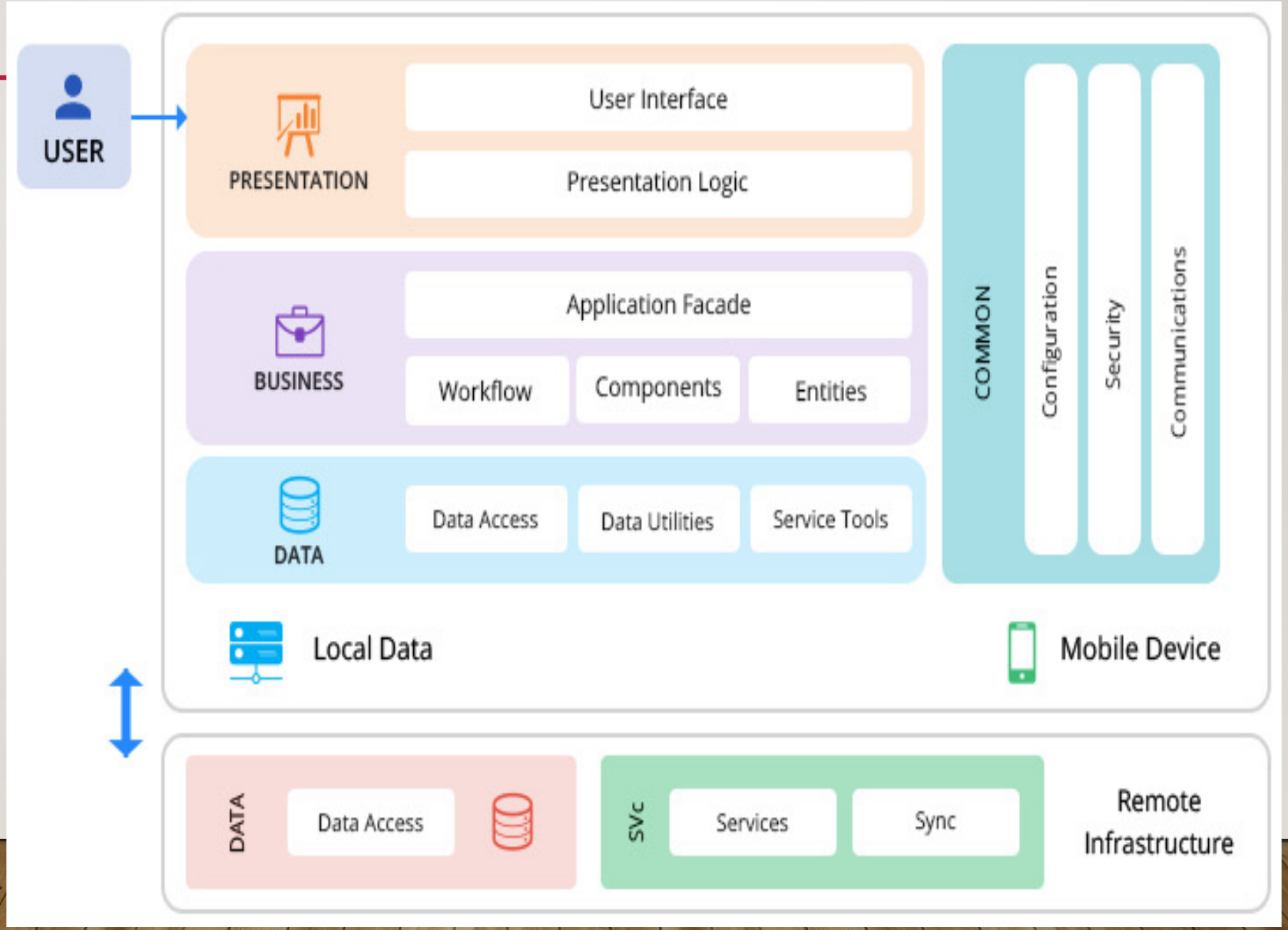
Complaint Registration Date: 12/10/2022

Status: Dropped

Status Details: No idea why it is dropped.

Close

ARCHITECTURE



APPROACH

Strategy

Define Strategic Goals for the Apps, obtain App code and assessment of existing App

UI / UX Design

Create seamless and effortless user experience with a polished design

App Testing

Validation of app's quality thoroughly with a series of testing criteria

1 2 3 4 5 6

Analysis & Planning

Identify requirements, analyse requirement, requirement specification and prepare roadmap.

App Development

Development of Backend, APIs, and Mobile app following agile development process

Deployment & Support

Launch app in the App Store, Google market place and local app platform (if any), post deployment support.

TOPICS SUGGESTED FOR THE APP

ཉོགས་བཤད།
བརྡ་དོན་ཚིག
ཞབས་ཏོག
ཆོ་གྲྭ།
འགན་ཁུར།
ལག་རྩལ།
ཡེ་ཤེས་པའི་སྤྱན།

DECISIONS ON THE COMPLAINT

Investigate ཞིབ་དཔྱད།
Share for action དང་ལེན་གྱི་དོན་ལུ་ བརྗེ་སོར།
Share for sensitization གནས་ཚུལ་གྱི་དོན་ལུ་ བརྗེ་སོར།
Information enrichment བདེན་དཔྱད་ཀྱི་དོན་ལུ་ གནས་ཚུལ་ཁ་སྐོང་བསྡུ་ལེན།
Drop ཕྱིར་བྱད/ངོས་ལེན་མེདཔ།

ཞིབ་དཔྱད་: ཁྱོད་ཀྱི་ཉེགས་བཤད་འདི་ ཞིབ་དཔྱད་འབད་ནི་གྲངས་སུ་ཚུད་དེ་ཡོདཔ། ཞིབ་དཔྱད་འདི་ ཉེགས་བཤད་ཀྱི་གཙོ་རིམ་དང་ ཞིབ་དཔྱད་ལས་ཁུངས་ཀྱི་མི་སྟོབས་དང་དུས་ཚོད་ཀྱི་ལྟ་ངེས་དང་བསྟུན་ ཞིབ་དཔྱད་འབད་འོང་། ཉེགས་བཤད་བཀོད་མི་ལུ་བཀའ་དྲིན་ཆེ། ཁ་གསལ་གྱི་དོན་ལུ་ བརྒྱུད་འཚིན་ཨང་ ०२-३२२८५७/१७१२३४१२ ནང་ལུ་འབྲེལ་བ་མཛད་གནང་།

INVESTIGATE- Your complaint has qualified for investigation. It will be investigated based on the priority and resources available. For more details, call 02-322987/17123412 during office hours. Thank You.

DECISIONS ON THE COMPLAINT

Share for action དང་ལེན་གྱི་དོན་ལུ་ བརྗེ་སོར།

དང་ལེན་གྱི་དོན་ལུ་ བརྗེ་སོར་ཨ་: ཁྱོད་ཀྱི་ཉེགས་བཤད་འདི་ འབྲེལ་བ་ཡོད་པའི་ལས་སྡེ་ལུ་ དང་ལེན་གྱི་དོན་ལུ་བརྗེ་སོར་འབད་ཡོད། དང་ལེན་སྐྱེན་ཞུ་ཐོབ་ཞིན་མ་ལས་ ཉེགས་བཤད་འདི་ བསྒྱར་ཞིབ་འབད་དེ་ གྲོས་ཐག་གཅད་འོང། ཉེགས་བཤད་བཀོད་མི་ལུ་བཀའ་དྲིན་ཆེ། ཁ་གསལ་གྱི་དོན་ལུ་ བརྒྱུད་འཚིན་ཨང་ ০২-৩২২৯৮৭/১৭১২৩৪১২ ནང་ལུ་འབྲེལ་བ་མཛོད་གནང་།

Share for action- Your complaint has been shared with relevant agency. Your complaint will be reviewed once again against the ATR received and decided accordingly. For more details, call 02-322987/17123412 during office hours. Thank You.

DECISIONS ON THE COMPLAINT

Share for sensitization གནས་ཚུལ་གྱི་དོན་ལུ་ བརྗེ་སོར།

གནས་ཚུལ་གྱི་དོན་ལུ་ བརྗེ་སོར་ཨ། ཁོང་ཀྱི་ཉེགས་བཤད་འདི་ འབྲེལ་བ་ཡོད་པའི་ལས་སྡེ་ལུ་ གནས་ཚུལ་གྱི་དོན་ལུ་བརྗེ་སོར་འབད་ཡོད། འབྲེལ་བ་ཡོད་པའི་ལས་སྡེ་གིས་ ཉེགས་བཤད་ཀྱི་གནད་དོན་དང་འབྲེལ་ ལེགས་བསྒྱུར་འབད་དགོཔ་འཐོན་ཚེ་ ལེགས་བསྒྱུར་འབད་འོང། ཉེགས་བཤད་ བཀོད་མི་ལུ་བཀའ་དྲིན་ཆེ། ཁ་གསལ་གྱི་དོན་ལུ་ བརྒྱུད་འཚིན་ཨང་ ০২-৩২২৯৮৭/১৭১২৩৪১২ ནང་ལུ་འབྲེལ་བ་མཛད་གནང་།

Share for sensitization- Your complaint has been shared with relevant agency. The relevant agency will make required changes in the system, if there is any, based on your complaint. For more details, call 02-322987/17123412 during office hours. Thank You.

DECISIONS ON THE COMPLAINT

Information Enrichment བདེན་དཔྱད་ཀྱི་དོན་ལུ་ གནས་ཚུལ་ཁ་སྐོང་བསྡུ་ལེན།

བདེན་དཔྱད་ཀྱི་དོན་ལུ་ གནས་ཚུལ་ཁ་སྐོང་བསྡུ་ལེན་ཨ། ཁྱོད་ཀྱི་ཉེགས་བཤད་འདི་ བདེན་དཔྱད་ཀྱི་དོན་ལུ་ གནས་ཚུལ་ཁ་སྐོང་བསྡུ་ལེན་འབད་དགོ་མ་ ཐབས་སྤུངས་ཡོད། གནས་ཚུལ་བསྡུ་ལེན་འབད་དེ་ དེའི་དཔྱད་ཞིབ་ཀྱི་གྲུབ་འབྲས་དང་བསྟུན་ ཚོས་ཐག་གཅད་འོང་། ཉེགས་བཤད་བཤོལ་ཏེ་ བཀོད་མི་ལུ་བཀའ་དྲིན་ཆེ། ཁ་གསལ་གྱི་དོན་ལུ་ བརྒྱུད་འཕྲིན་ཨང་ ০২-৩২২৯৮৭/১৭১২৩৪১২ ནང་ལུ་འབྲེལ་བ་མཛད་གནང་།

Information Enrichment- Since your compliant requires further validation, it has been qualified for information enrichment. Your complaint will be reviewed once again against the finding of information enrichment and decided accordingly. For more details, call 02-322987/17123412 during office hours. Thank You.

DECISIONS ON THE COMPLAINT

Drop ཕྱིར་བྱད/ངོས་ལེན་མེདཔ།

ཕྱིར་བྱད/ངོས་ལེན་མེདཔཨ། ཁྱོད་ཀྱི་ཉེགས་བཤད་འདི་ དན་ལྷད་བཀག་སྡོམ་ལྷན་ཚོགས་ཀྱི་ཉེགས་བཤད་ཀྱི་ ཚད་གཞི་གི་གྲངས་སུ་མ་ཚུདཔ་ལས་ ངོས་ལེན་འབད་ཐབས་མ་བྱུང་ (ཕྱིར་བྱད་བཏང་ཡོད)། ཉེགས་བཤད་བཀོད་མི་ལུ་བཀའ་དྲིན་ཆེ། ཁ་གསལ་གྱི་དོན་ལུ་ བརྒྱད་འཕྲིན་ཨང་ ০২-৩২২৯৮৭/১৭১২৩৪১২ ནང་ལུ་འབྲེལ་བ་མཛད་གནང་།

Drop- Since your complaint does not fall within the parameters established by the ACC, it has been dropped. For more details, call 02-322987/17123412 during office hours. Thank You.

Thank You

Renaming of Conference Halls and Instituting Utility Management System

Date: 17 November, 2022

AFS, Secretariat Services

ACC
ANTI-CORRUPTION COMMISSION

Lhadro Lam, Kawajangsa
Thimphu, BHUTAN
Post Box No. 1113
Facsimile +975-2-33 48 65
Tel. No. +975-2-33 48 64/66/67
www.acc.org.bt

Outline

1. Introduction

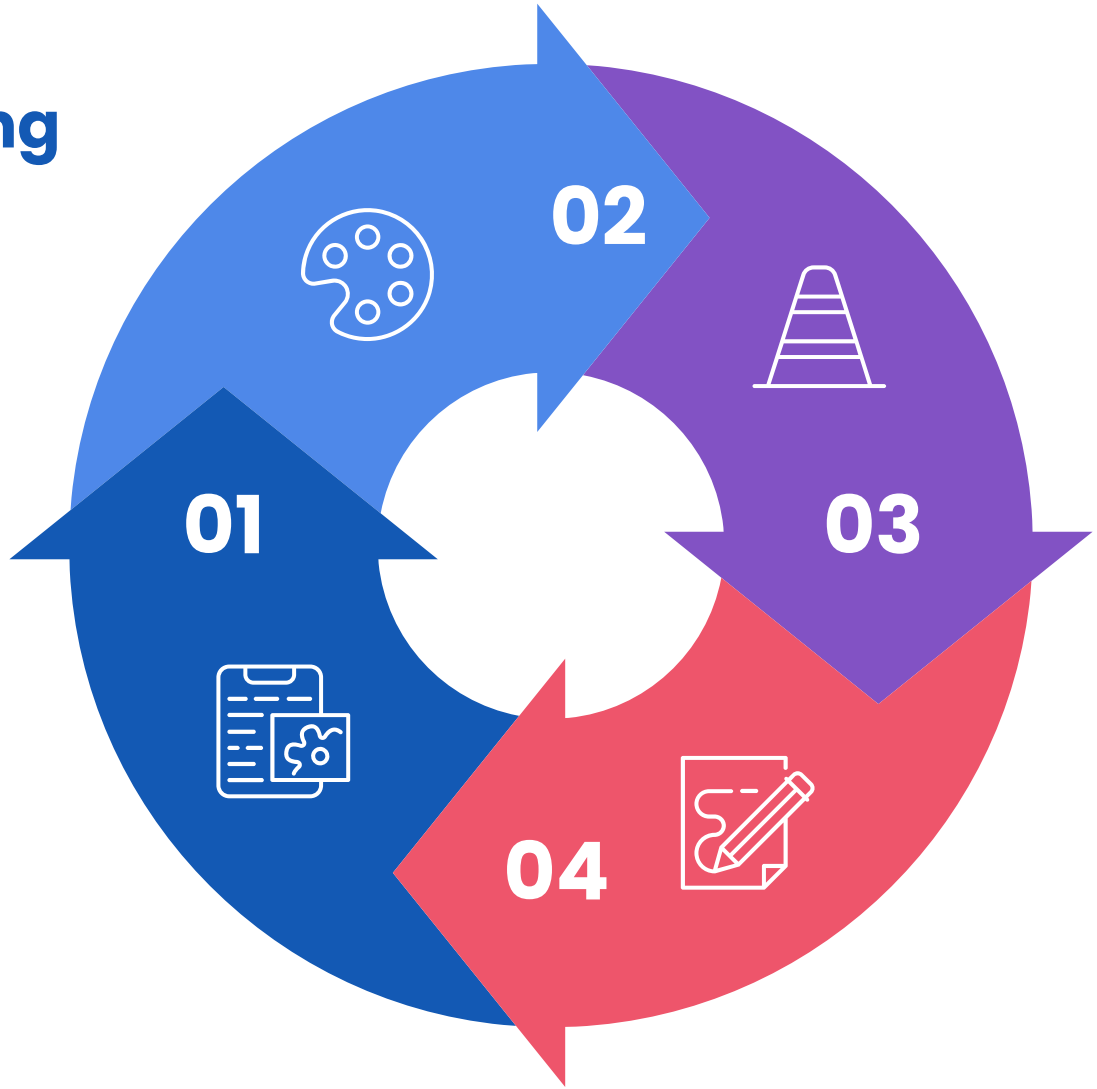
1. Objectives

1. Old and Proposed New Names

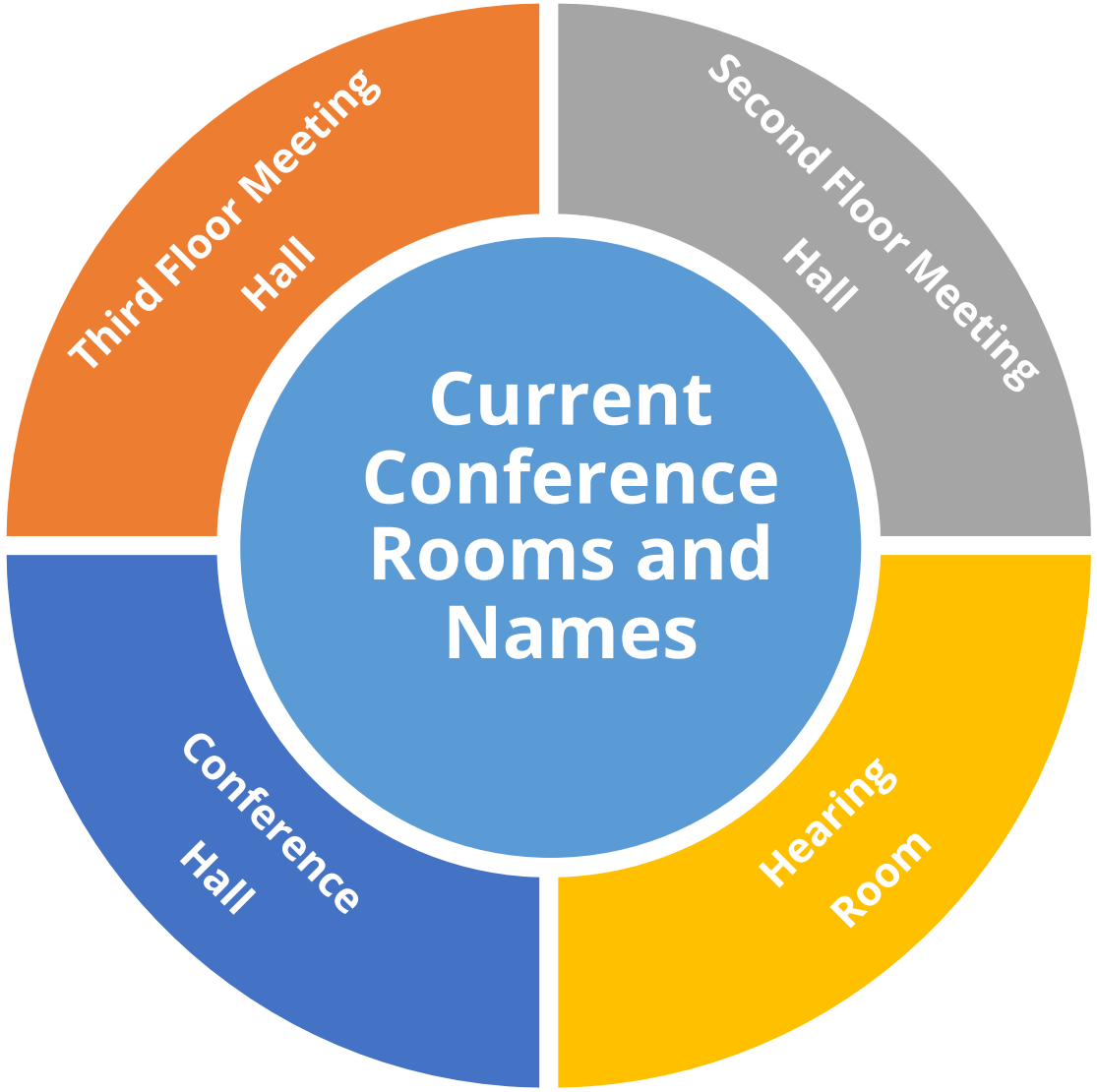
1. Way Forward

Introduction

Practice of Managing a Utility by (As per section 13.6 and 4.2 of PMM 2016):



Introduction…..



Objectives

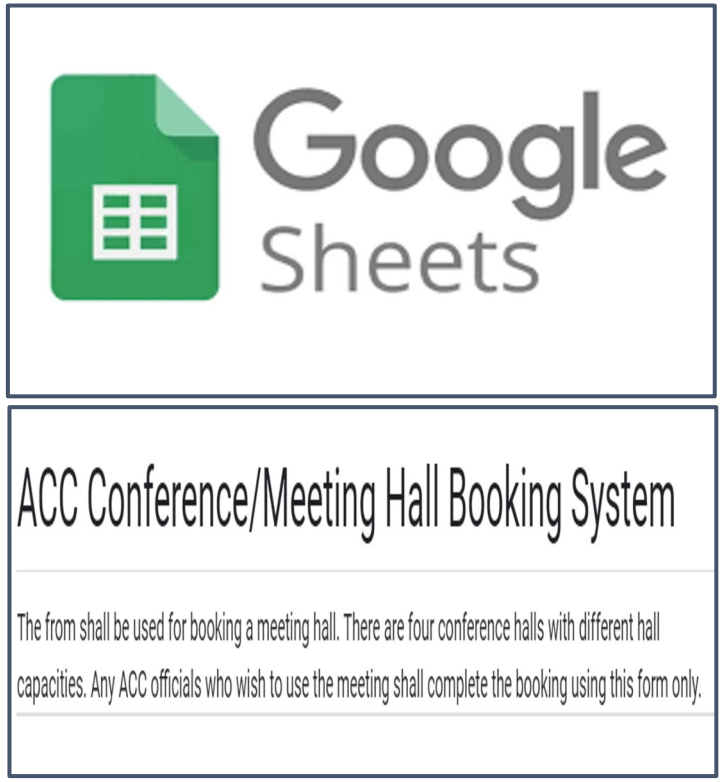


- to serve practical purposes such as assisting staff in finding the appropriate meeting room
- To enhance accountability culture
- Cost saving & timely maintenance
- to develop and implement sustainable annual maintenance plans, and ensure smooth utility processes

Old & Proposed New Names

#	Old Name	New Names			
		Option 1	Option 2	Option 3	**Option?**
1	Third Floor Meeting Room	Jigme Room	Empathy Room	Taag Room	
2	Second Floor Meeting Room	Khesar Hall	Accountability Hall	Singye Hall	
3	Hearing Room	Namgyel Room	Transparency Room	Chung Room	
4	Conference Hall	Wangchuck Conference Hall	Integrity Hall	Druk Hall	

Booking Process



Conference Hall Booking System

Time stamp	Name of the Official, Div/Dept	Booking Start Time	Purpose	Booking End Time	Booking Date	Choice of Meeting Hall	No. of Attendees	Notes/Remarks/Requests
12/11/2022 01:34:09	TW, SS	09:30:00	Meeting of MTO and Drivers	01:00:00	14/11/2022	Taag Room (Third Floor)	11	NIL
12/11/2022 01:39:28	PT, PD	02:00:00	ATR Meeting	05:00:00	16/11/2022	Chung Room (HR)	11	Tea and snacks and working lunch for 15 persons
12/11/2022 01:49:19	TJ, PD	09:45:00	Meeting on MIs	11:00:00	21/11/2022	Druk Hall(Ground Floor)	21-30	Working lunch for 25 Persons

Way Forward

- ***Update the facilities (Stock Taking)***
- **Designing and Printing; and**
- **Implement Booking System(Immediate in Google Sheet and before 1/1/2023 as a mini APP in the ACC APP or website);**
- **Develop and Implement Annual Maintenance Plan and SOP.**